

25LBCV01263 25LBCV01263

County: los-angeles

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Case Number: 25LBCV01263 Hearing Date: June 30, 2026 Dept: S28

Analysis

A.

Timing

of the Motion Hearing and Trial

“The motion [for summary judgment]

shall be heard no later than 30 days before the date of trial, unless the court

for good cause orders otherwise.” (Code Civ. Proc. § 473c subd. (a)(3).) Here, on April 13, 2026 the Court granted

Defendant’s Ex Parte Application to Advance the Hearing Date on Motion for

Summary Judgment and the hearing date was advanced to June 30, 2026.

Plaintiff did not file an

Opposition.

B. Plaintiff’s Song-Beverly Act Claims

(First through Fourth causes of action)

i.

First Cause of Action – Express Warranty

Defendant

argues that Plaintiff

cannot establish a triable issue of material fact for his First Cause of Action

based on express warranty because Plaintiff never presented his 2024 Honda

Accord (“Subject Vehicle”) for more than one unsuccessful attempt to repair the

same nonconformity. (Notice of Mot.)

Plaintiff's

first four causes of action arise under the Song-Beverly Act. "The Song-Beverly Act is a remedial statute designed to protect consumers who have purchased products covered by an express warranty." (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 798.) The Song-Beverly Act requires that "[e]very manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall: [¶] (1)(A) Maintain in this state sufficient service and repair facilities reasonably close to all areas where its consumer goods are sold to carry out the terms of those warranties or designate and authorize in this state as service and repair facilities independent repair or service facilities reasonably close to all areas where its consumer goods are sold to carry out the terms of the warranties." (Civ. Code, § 1793.2(a).)

For motor vehicles specifically, "[i]f the manufacturer or its representative in this state is unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle in accordance with subparagraph (A) or promptly make restitution to the buyer in accordance with subparagraph (B)." (Civ. Code, § 1793.2(d)(2).)

"For new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good." (Rodriguez v. Ford Motor Co.(2017), 17 Cal.5th 182, 202.) For purposes of Civil Code section 1793.2(d), the term "'[n]ew motor vehicle' means a new motor vehicle that is bought or used primarily for personal, family, or household purposes. 'New motor vehicle' also means a new motor vehicle with a gross vehicle weight under 10,000 pounds that is bought or used primarily for business purposes by a person, including a partnership, limited liability company, corporation, association, or any other legal entity, to which not more than five motor vehicles are registered in this state." (Civ. Code, § 1793.22(e)(2).) "[O]ther motor vehicle sold with a manufacturer's new car warranty" means "a vehicle for which a manufacturer's new car warranty is issued with the sale." (Rodriguez, supra, at p. 206.) Under Song-Beverly, a manufacturer is "generally off the hook" for used vehicles. (Kiluk v. Mercedes-Benz USA, LLC (2019) 43 Cal.App.5th 334, 339.)

Defendant cites to *Silvio v. Ford*

Motor Co. (2003) 109 Cal.App.4th 1205, 1208 (*Silvio*), wherein the Court of Appeal expressly held that Song-Beverly Act liability is triggered when more than one repair attempt is made for the same alleged non-conformity. (Mot., p. 6.)`

Defendant puts forth the following

undisputed material facts: Although Plaintiff presented the Accord for service on several occasions between August 2024 and January 2026, each reported concern was addressed with a specific repair or diagnostic evaluation. (SSUMF 4-30). The brake warning light was resolved by replacing the ICM; the steering noise was resolved by replacing the EPS unit; the infotainment concerns were resolved through battery and software resets; the engine misfire was resolved by replacing fuel injectors; and the Lane Assist concern could not be duplicated. (SSUMF 4–30.) No single condition recurred after repair, and Plaintiff has not identified any defect that substantially impaired the use, value, or safety of the Accord. (Ibid.) Plaintiff also has no evidence that any such nonconformity was not repaired after a reasonable number of attempts. (SSUMF 36-37). When AHM asked Plaintiff to identify the nonconformities he contends impaired the use, value, or safety of the Accord, the repair attempts for each, and the evidence supporting his failure-to-repair claim, he could not identify any. (SSUMF 32, 36-37.) Likewise, when asked to identify any condition that had not been repaired, Plaintiff again had no evidence. (SSUMF 36-37.)

Here, based on the repair records

before the Court, Defendant carries its burden to establish that Plaintiff did not present the Subject Vehicle for more than one repair attempt for the same alleged non-conformity during the express warranty period. When AHM asked Plaintiff to identify the nonconformities he contends impaired the use, value, or safety of the Accord, the repair attempts for each, and the evidence supporting his failure-to-repair claim, he could not identify any. (SSUMF 32, 36-37.) Likewise, when asked to identify any condition that had not been repaired, Plaintiff again had no evidence. (SSUMF 36-37.) This is insufficient under *Silvio*. Thus,

Defendant has met its burden of establishing that the first cause of action has no merit because Plaintiff cannot prove the existence of a defect or nonconformity in the subject vehicle during the warranty period, or the requisite number of repair attempts.

Plaintiff fails to oppose, and thus fails to create a triable issue of material fact on the first cause of action.

ii.

Second

Cause of Action -- Section 1793.2(b) Claim

Section 1793.2(b) of the Song-Beverly Act requires defendants to repair a vehicle to conform to the applicable warranty within thirty days.

Defendant argues that Plaintiff's 1793.2(b) claim fails as Plaintiff lacks affirmative evidence that vehicle was ever out of service for warranty repairs, and the undisputed evidence shows no repair took even close to 30 days. (Mot., p. 8.)

Defendant

puts forth the following undisputed material facts:

· August 9–13, 2024 (5 days): Brake warning light concern. Dealer replaced the integrated control module (ICM) and verified normal operation on road test; vehicle returned after five days. (SSUMF 4–7.)

· February 14–19, 2025 (6 days): Recall inspection of high-pressure fuel pump; creaking from front steering confirmed and resolved by replacing EPS rack; alignment performed. (SSUMF 8–12.)

· March 14–18, 2025 (4 days): Hands-free audio issue resolved via hard battery and software resets; tire pressures set and TPMS reset. (SSUMF 13–17.)

· September 26–27, 2025 (2 days): Audio unit displayed active call/connection; factory data reset and OTA gateway reset performed; driver-assist DTCs scanned/cleared; during test drive, misfire observed and further injector testing recommended. (SSUMF 18-22.)

· September 30–October 1, 2025 (2 days): Returned; dealer completed fuel-injector replacement and verified

misfire resolution on test drive. (SSUMF 23–26.)

· January 12, 2026 (1 day): Vehicle reportedly shut off at stop; audio would not register end of call or play music; “Lane Assist Take to Dealer” light. Battery charged; software updated; Lane-Assist concern not duplicated; vehicle returned same day. (SSUMF 27-31.)

· Across all visits, the Accord was never out of service for more than six days, and no repair was delayed, extended, or incomplete. (SSUMF 4–31.)

Here,

Defendant carries its burden to establish that Plaintiff has not produced and cannot produce affirmative evidence that any single repair attempt exceeded 30 days as required under § 1793.2(b).

Plaintiff fails to oppose, and thus fails to create a triable issue of material fact on the second cause of action.

iii.

Third

Cause of Action -- 1793.2(a)(3) Claim

Section 1793.2(a)(3) of the Song-Beverly Act requires a service facility to be supplied with adequate literature and replacement parts.

Defendant argues that Plaintiff has produced no evidence of any repair delay, let alone a delay attributable to AHM's purported failure to supply parts or literature, asserting only the conclusory statement that AHM “failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts.” (SSUMF 39-40)

Here, Defendant carries its burden to establish that Plaintiff has not produced and cannot produce affirmative evidence of any repair delay, let alone a delay attributable to AHM's purported failure to supply parts or literature.

Plaintiff fails to oppose, and thus fails to create a

triable issue of material fact on the third cause of action.

iv.

Fourth

Cause of Action -- Implied Warranty

Section 1791.1(c) of the

Song-Beverly Consumer Warranty reads: "The duration of the implied warranty of merchantability...shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable; but in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer. Where no duration for an express warranty is stated with respect to consumer goods, or parts thereof, the duration of the implied warranty shall be the maximum period prescribed above." (Cal. Civ. Code §1791.1(c),

Defendant argues that Plaintiff

cannot identify any evidence suggesting his Accord was unsafe or undrivable. (Mot., p. 10.) Defendant contends that while Plaintiff presented the Accord for occasional recalls, diagnostic checks, and routine maintenance, which is the very purpose of a warranty, each time Plaintiff presented the vehicle, the dealership addressed the reported concern with a specific repair or diagnostic evaluation, and the vehicle was returned to him in normal operating condition. (SSUMF 4-31) Defendant contends that Plaintiff continued to drive the Accord throughout his ownership, confirming it was fit for its ordinary purpose. (SSUMF 4-31)

Here, Defendant carries its burden

to establish that Plaintiff failed to put forth evidence that his vehicle was not fit for the ordinary purpose for which it was used, or that it was unsafe to operate.

Plaintiff fails to oppose, and thus fails to create a triable issue of material fact on the fourth cause of action.

Overall,

Defendant's motion for summary judgment is GRANTED as to the first, second, third, and fourth causes of action.

C.

Fraudulent Concealment (Fifth cause of action)

Defendant

next argues that Plaintiff's

fraudulent concealment claim fails as a matter of law because (1) Plaintiff has no evidence of concealment; (2) AHM had no duty to disclose additional information to Plaintiff; and (3) this cause of action is barred by the economic loss doctrine. (Mot., pp. 11-16.)

Fraud

based on concealment requires that "(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311 (Bigler-Engler).)

An

essential element of intentional concealment includes the duty to disclose, which must be based upon a transaction, or a special relationship, between plaintiff and defendant. (Bigler-Engler, supra, 7 Cal.App.5th at 311.) "There are 'four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.'" (Ibid.) "[O]ther than the first instance, in which there must be a fiduciary relationship between the parties, 'the other three circumstances in which nondisclosure may be actionable presuppose[] the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise. . . . "[W]here material facts are known to one party and not to the other, failure to disclose them is not actionable fraud unless there is some relationship between the parties which gives rise to a duty to disclose such known facts." [Citation.]' [Citation.]" (Hoffman v. 162 North Wolfe LLC (2014)

228 Cal.App.4th 1178, 1187 (Hoffman).)

“Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Bigler-Engler, *supra*, 7 Cal.App.5th at p. 312.)

First,

Defendant argues that Plaintiff

has put no admissible evidence into the record to support his concealment theory. (Mot., p. 11.) Defendant puts forth the following undisputed facts in support: Despite AHM's written discovery served on January 21, 2026, Plaintiff has identified no documents showing AHM had pre-sale knowledge of any “1-speed e-CVT transmission” defect in his 2024 Accord, no witnesses with knowledge of concealment, and no facts showing an actionable omission or reliance. (SSUMF 46-50.) Independently, the service history defeats the theory: across all visits, Plaintiff never presented the vehicle for a transmission repair, and the records reflect no verified transmission defect in this Accord. The documented visits concerned an ICM replacement for a brake-warning event, EPS rack replacement for a steering noise, infotainment resets, fuel-injector replacement for a misfire, and routine maintenance, not transmission work. (SSUMF 4-31.)

Here, Defendant carries its burden

to establish that Plaintiff failed to put forth evidence that Defendant concealed any material fact. Plaintiff puts forth no basis for AHM's pre-sale knowledge of any defect, and the service history does not involve any transmission defects which Plaintiff claims Defendant concealed in the first place.

Plaintiff fails to oppose, and thus fails to create a triable issue of material fact on the fifth cause of action on this basis.

Next,

Defendant argues that Plaintiff

cannot establish AHM owed a duty to disclose to him, much less a direct transactional relationship between him and AHM. (Mot., pp. 11-12.) Defendant contends that Plaintiff did not engage in a direct transaction with AHM because Plaintiff leased the Accord from an independently owned and operated dealership—Rock Honda—not AHM. (SSUMF 1.)

Here,

Defendant carries its burden to establish that there was no relationship between the parties that gave rise to a duty to disclose facts as Defendant is the manufacturer while Plaintiff only entered into a contract with a third-party retailer. (See Hoffman, supra, 228 Cal.App.4th at 1187.)

Thus,

in the absence of a fiduciary relationship, Plaintiff's claim for concealment requires one of three conditions: (1) exclusive knowledge of a material fact by Defendant; (2) active concealment of a material fact; or (3) partial representations coupled with suppression of material facts. (Bigler-Engler, supra, 7 Cal.App.5th at 311; LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336.)

As

discussed above, Defendant carries its burden to establish that Plaintiff presented with no transmission defect and that Plaintiff fails to provide evidence that Defendant concealed any defect.

Plaintiff fails to oppose, and thus fails to create a triable issue of material fact on the fifth cause of action on this basis.

Finally, Defendant contends that the fraudulent concealment claim fails because it is barred by the economic loss rule. (Mot., p. 12.) The economic loss doctrine precludes recovery in tort where a plaintiff's damages consist solely of economic losses. (Seely v. White Motor Co. (1965) 63 Cal.2d 9, 17-18, superseded by statute on other grounds.)

Here,

Defendant has not established that Plaintiff's fraud claim is barred by the economic loss rule. "[T]he economic loss rule does not apply to limit recovery for intentional tort claims like fraud," but applies instead to negligently inflicted economic losses devoid of physical or property damage. (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 38.) "Plaintiffs' claim for fraudulent inducement by concealment is not subject to demurrer on the ground it is barred by the economic loss rule." (Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 840 (review dismissed December 18, 2024.) This cause of action is an intentional tort fraud

claim and therefore falls outside the scope of the economic loss rule. (Jones v. Awad (2019) 39 Cal.App.5th 1200, 1211.)

Thus, Defendant fails to carry its burden on this issue.

Overall,

Defendant's motion for summary judgment is GRANTED as to the fifth cause of action.

CONCLUSION

Defendant's Motion for Summary Judgment is GRANTED.

Defendant is ordered to submit a proposed judgment within 10 days.

A Non-Appearence Case Review re: Submission of Proposed Judgment will be scheduled.

Moving party to give notice.